

CAPGEMINI SE PERFORMANCE & EMPLOYMENT LINKED SHARE PLANS

DISCLOSURE REQUIREMENTS FOR BENEFICIARIES OF PERFORMANCE SHARE PLANS VESTED IN INDIA [ONLY FOR EMPLOYEES RESIDENT IN INDIA]

This document aims to address the tax disclosure requirements for Capgemini Performance Share Plans. This note is based on the Indian tax laws and the tax treaties in force as on date which are subject to change over time, which may affect your tax position. For more specific and definitive advice and to take care of any possible changes in the Income tax Forms and personal tax legislation, it is recommended that you consult your personal tax advisors regarding the tax consequences and resultant disclosures thereon while filing each of the year's tax return.

Tax disclosure requirements are mandated on occurrence of the below events

- 1) Vesting of Performance Shares in India [date of ownership]
- 2) Performance Shares are continued to be held post vesting [till date of sale]
- 3) Receipt of Dividend during the year [post vesting]
- 4) Subsequent Sale of Performance shares

1. Vesting of Performance Shares in India:

- Tax on Perquisite# is required to be paid on the date of vesting of the performance shares – This tax will be recovered by the payroll team – [Refer below – Vesting of Performance Plan 2021 is used for Illustrative purposes only]:
 - i. Performance Shares granted on 6th October 2021 – Say 40 shares
 - ii. Vesting Period – 4 years
 - iii. Performance Shares vested on 8th October 2025 – Say 40 shares
 - iv. Perquisite tax recovered from the employee – Refer below Illustration:

Computation of Perquisite Value on 8th October 2025 [for 40 Shares]	Amount (INR)
Fair Market Value as per Merchant Banker Certificate x No. of Performance Shares [say 40] x Fx rate [Eur 123.13x 40 shares x 103.09 [1 Eur to INR] #	5,07,739

*#As per Rule 3 of the Income-tax Rules 1962, the value of the perquisite is determined on the basis of the average of the opening and closing price of the share on the vesting date, basis the certificate obtained from a Category I – Merchant Banker (Capgemini India obtains this certificate which is used for calculation of the perquisite which is also disclosed in Form 12BA); Accordingly, **Euro 123.13** is the FMV to be used and **103.09** is the Fx conversion rate used for calculation of perquisite as per the IT Rules.*

1.1 Disclosure requirements for performance share holders [filing of tax return] [Schedule FA – Details of Foreign Assets and Income from any source outside India] of ITR2

1.1.1 Please fill Schedule A2 [under Schedule FA – Refer to the Tab TR_FA in the ITR-2 Form] by disclosing details of Foreign Custodial Accounts [cash and stock accounts to be disclosed in separate rows] held in Banque Transatlantique

NOTE: This Schedule is not Applicable for NRI \ (Non-Resident Indians) as per Residential Status.

SN	Country Name & Code	Name of the financial Institution	Address of the Financial Institution	ZIP Code	Account Number	Status	Account Opening Date	Peak Balance During the Period	Closing Balance	Gross amount Paid / Credited to the Account During the period (Drop down is available for the nature of income)	
1	2	3	4	5	6	7	8	9	10	Nature of Amount - 11A	Amount - 11 B
(i)	France - FR	Banque Transatlantique	26 Avenue Franklin D. Roosevelt 75008 Paris, France	75008	Please provide your BT account number	Owner		Please disclose the total value as appearing in Column 9 & 10 of A3 Schedule		Please disclose Dividend amount and Sale Proceeds [this should be the total of col 11 plus col 12 in A3 Schedule)	

1.1.2 Please fill Schedule A3 [under Schedule FA Refer to the Tab TR_FA in the ITR-2 Form] separately for shares held under each performance share plan – [refer below]

SN	Country Name & Code	Name of the entity	Address of the entity	ZIP Code	Nature of Entity	Date of acquiring the interest	Initial value of the investment	Peak value of investment during the period	Closing value	Total gross amount paid/credited with respect to the holding during the period	Total gross proceeds from sale or redemption of investment during the period
1	2	3	4	5	6	7	8	9	10	11	12
(i)	France - FR	Capgemini SE	Place de l'Etoile, 11 rue de Tilsitt - 75017 Paris, France	75017	Listed Company in Paris Stock Exchange	Please mention plan wise Date of vesting	Refer Note – 1 Below	Refer Note – 2 below.	Refer Note – 3 below	Refer Note – 4 Below	Refer Note – 5 Below

<u>Notes</u>	<u>Plan vested during the FY for which ROI is being filed</u>	<u>Shares held from all the earlier performance plans</u>
<u>Note 1</u>	Disclose perquisite value as per Form 12BA – For the total number of performance shares vested during the FY <i>[Including shares that were sold if any to meet perquisite tax]</i>	Disclose perquisite value as per Form 12BA for each of the plans vested in the earlier years separately in proportion to the shares held during the year <i>[Including shares if any sold on or before 31 Dec 25]</i>
<u>Note 2</u>	Number of shares held as on 31 December '25 (including the shares if any sold during the year up till Dec 25) X Per share price in Euro X SBI TT buying rate [Share price and TT buying rate is to be considered on the day, the share price reached the peak value] Period to be considered for determining the peak value is - Date of vesting i.e. 8 th Oct '25 till 31 December '25 [Peak value for the plan vested during FY 25-26 is given in the below table]	Number of shares held as of 31 December 25 (Including the shares if any sold during the year up till Dec 25 which are chargeable to tax under the head Capital gains) X Per share price in Euro X SBI TT buying rate [Share price and TT buying rate is to be considered on the day, the share price reached the peak value]. Period to be considered for determining the peak value is –From 1 January 2025 to 31 December '25 [Peak value is given below]
<u>Note 3</u>	Number of shares held as of 31 December '25 X Euro price per share on 31 December '25 X SBI TT buying rate as on 31 December '25	Number of shares held as of 31 December '25 X Euro price per share on 31 December '25 X SBI TT buying rate as on 31 December 25
<u>Note 4</u>	Disclose the gross dividend amount received if any during the period	Disclose the gross dividend amount received if any during the period
<u>Note 5</u>	Where performance shares are sold – (Disclose the sale value of performance shares sold to meet perquisite tax [Sell to Cover option] + value of any other performance shares sold out of the 2021 plan vested on 8 th Oct. '25); Where shares are not sold – NIL Value.	Please disclose the sale proceeds of performance shares in case of any sale during the year; Else NIL

Additional information that will enable employees while filling the above mentioned schedules:

Peak value of the CG- SE shares during CY 2025	Euro 185.45 per share on 17 th February 2025	SBI TT buying rate as on 17 th February 2025: Euro to INR –89.41
Peak value of the CG- SE shares from 8 th October 2025 to 31 st December 2025 [Applicable for the 2021 Plan vested during FY 25-26]	Euro 151.85per share on 11 th December 2025	SBI TT buying rate as on 11 th December 2025: Euro to INR – 104.32
Closing value (CG – SE share value as on 31 st December 2025)	Euro 142.25per share on 31 st December 2025	SBI TT buying rate on 31 st December 2025: Euro to INR 103.84

2. Holding of the performance shares post vesting till the date of sale;

Performance shareholders to continue the disclosure requirements as mentioned in the afore-said table.

3. Receipt of Dividend:

Performance shareholders who have received dividend during the FY 25-26 from CG SE have to offer the same [i.e., gross amount of dividend] for tax under the head other income and disclose the same in **Schedule OS in ITR 2**. Additionally, this gross dividend income is to be disclosed in the schedule FSI (Refer to the table given below). Such dividend income will be taxed at the applicable tax rate. Performance shareholder can claim credit of taxes withheld by CG SE [at the time of payment of dividend by CG SE] while filing the income tax return. The same needs to be disclosed in the schedule FSI and can be claimed as a tax credit under schedule TR [Refer to the Tab TR_FA in the ITR-2 Form] and it is mandatory to file Form 67 by filling the relevant information. In addition to the above, the disclosure needs to be made in Schedule A3 [refer Note 4 above]. Forex rate to be used for conversion of such dividend income is the SBI TT buying rate as on the last day of the month preceding the month of receipt of dividend. Pls use the head of Income “**Other Sources**” for the dividend income.

Details of Income from outside India and tax relief (available only in case of resident)

SI No	Country Code (Note : If no entry is made in this column, then other columns will not be considered for that row)	Taxpayer Identification number	SI No	Head of Income (a)	Income from outside India (include d in PART B-TI) (b)	Tax paid outside India (c)	Tax payable on such income under normal provisions in India (d)	Tax relief available in India (e)= (c) or (d) whichever is lower (e)	Relevant article of DTAA if relief claimed u/s 90 or 90A (f)
	France – FR		i ii iii iv	Salary House Property Capital Gains Other Sources		INR equivalent tax amount withheld as per the certificate	Dividend income in INR multiplied with the applicable tax rate in India	Lower of ‘c’ or ‘d’	Article 11

4. Sale of Performance shares

As Capgemini SE shares are not listed on stock exchange in India, tax treatment would be similar to unlisted shares in India. The nature of capital gain, i.e., long-term [LTCG] or short-term [STCG], would depend on the holding period of performance shares. If performance shares are held for a period exceeding twenty-four (24) months, the capital gain will be treated as long term; otherwise (i.e., held for twenty-four (24) months or less), capital gain would be treated as short term in nature. Please note the below while computing the capital gains:

- Holding period is to be calculated from the date of vesting up to the date of sale;
- The amount disclosed in Form 12BA (per share INR value) is to be considered as the cost of acquisition for working out the capital gains basis proportionate number of shares sold;
- SBI TT Buying rate on the last day of the month preceding the month of sale is to be considered for the purposes of converting the sale consideration in EURO to INR.

Note: Provided month end SBI TT buying rate for your reference.

Dae Month	SBI TT Buying Rate
<u>31-01-2025</u>	88.78
<u>28-02-2025</u>	89.55
<u>29-03-2025</u>	91.86
<u>30-04-2025</u>	94.97
<u>31-05-2025</u>	95.78
<u>29-06-2025</u>	98.92
<u>31-07-2025</u>	99.02
<u>31-08-2025</u>	101.68
<u>30-09-2025</u>	103.09
<u>31-10-2025</u>	100.84
<u>29-11-2025</u>	102.35
<u>31-12-2025</u>	103.84
<u>30-01-2026</u>	107.83
<u>27-02-2026</u>	105.68
<u>31-03-2026</u>	105.92

Long-term and short-term capital gains are taxed differently. The applicable tax rate for long term capital gains for FY 25-26 is 12.5% (No Indexation benefit) plus applicable SC and Cess:

On the other hand, the short-term capital gains are taxed as per your applicable slab-wise income tax rate for the FY and total taxable income.

Notes to above disclosures:

1. In terms of Regulation 22(4) of FEMA 120 RB-2004 dated July 7, 2004 a person residing in India will need to transfer funds to their India Bank Accounts [earned through sale of shares acquired under ESOP scheme/dividend thereon] not later than **180 days** from the date of sale of such shares/dividend receipt, failing which, the same would result in non-compliance of FEMA/RBI regulations.
2. Banque Transatlantique considers the Opening share price on the date of vesting for sale of shares to meet India tax liability on perquisite [on the date of vesting] whereas for the purposes of perquisite valuation, CG India obtains a certificate from the Merchant Banker which is the fair market value of the shares arrived at by taking **average of the opening price and closing price of the share on the date of vesting** as per Rule 3 of the IT Rules. Performance shareholders are advised to refer Form 16/Form 12BA for disclosures and computation of tax liability.

3. The above note is restricted to disclosure requirements under schedule Foreign Assets w.r.t. vesting of performance share plan. Performance shareholders are requested to consult their tax advisors and ensure compliance with disclosure requirements in the other schedules [viz. Capital Gain etc.] and also ensure complete disclosure in the ITR arising from sale of performance shares and dividend received if any from all the share plans [vested during the year as well as all previous plans],
4. Please also note that the regular Capgemini Group Employee Share Offering Plan needs to be disclosed in Schedule FA **[Sub-Category D - Details of any other capital asset held (Including any beneficial interest) at any time during the calendar year ending as on December 31, 2025]. Same needs to be disclosed plan wise. Details of disclosure requirements are forming part of the ESOP Supplement Plan document**

Please note that this Tax Note is based on the Indian laws in force as of date. The laws, practices, and the Tax Treaty [between India and France] are subject to change over time, which may affect your tax position. For more specific and definitive advice and to take care of any possible changes in the personal tax legislation, it is recommended that you consult your personal tax advisors regarding the tax consequences and resultant disclosures arising from the vesting and sale of Performance Shares.
